



Order under Section 31 Residential Tenancies Act, 2006

Citation: Henderson v Sadiq, 2025 ONLTB 94202

Date: 2025-12-10

File Number: LTB-T-065075-24

In the matter of: 130 King Street
Lisle ON L0M1M0

Between: Rose Henderson Tenant

And

Noreen Sadiq Landlord

Rose Henderson (the 'Tenant') applied for an order determining that Noreen Sadiq (the 'Landlord'): • entered the rental unit illegally.

- substantially interfered with the reasonable enjoyment of the rental unit or residential complex by the Tenant or by a member of their household.
- harassed, obstructed, coerced, threatened or interfered with the Tenant.

This application was heard by videoconference on November 12, 2025.

The Tenant and the Landlord attended the hearing.

Determinations:

1. As explained below, the Tenant proved the allegations contained in the application on a balance of probabilities. Therefore, the Landlord must pay the Tenant \$353.00.
2. It was undisputed that the Tenant moved into the rental unit on December 28, 2023, and vacated on March 31, 2024. The rental unit is a one-bedroom basement apartment. The Landlord lives on the main floor. The lawful monthly rent was \$1,500.00.

Illegal Entry

3. The Tenant testified that the Landlord entered the rental unit without giving written notice. The Tenant could not recall the date of the entry, but provided a photograph taken by a security camera she installed in the unit. The photograph shows the Landlord inside the rental unit, at the furnace room door. The Tenant explained that there had been an issue with the fridge, and she had given the Landlord permission to enter to inspect it. However, the Landlord later said she needed to see the furnace room but did not ask for the Tenant's permission to enter.
4. The Landlord testified that she needed to enter the unit several times to inspect and repair the fridge, and she always sent the Tenant a text message before entering. The Landlord stated that she informed the Tenant verbally that she needs to enter the unit to change the furnace filter, and the Tenant agreed to the entry.
5. The Tenant's testimony was very vague. She could not recall dates or times and was not present during the alleged illegal entry, relying on the photograph taken by her security camera. The burden rests with the Tenant to prove the allegations on a balance of probabilities. Given the Landlord's testimony that the Tenant consented to the entry, I find that this burden was not met. Therefore, I find that the Landlord did not enter the rental unit illegally.

Substantial Interference, Harassment

6. The Tenant testified that she had many belongings when she moved into the rental unit that she was in the process of organizing and donating. The Tenant is a senior and was working two jobs, which made it difficult for her to unpack quickly. According to the Tenant, the Landlord came to talk to her almost every day, asking about the boxes and telling the Tenant to clean them out quickly, setting specific deadlines. The Tenant stated that the Landlord's persistent talks made her feel uncomfortable, so she asked the Landlord to stop, but the Landlord's continued visits ultimately caused her to move out. The Tenant provided two photographs taken in February 2024 showing clear pathways through the unit and her belongings organized on various shelves.
7. The Tenant also testified that, within the first week of the tenancy, the Landlord told her to take a week off from work to declutter the unit, which she declined. The Tenant testified that the Landlord informed her she needed to declutter by February 16, 2024, or she would evict the Tenant. The Tenant testified that the Landlord called her previous landlord two months into the tenancy.
8. The Landlord testified that the Tenant moved in with enough belongings for a three-bedroom apartment, even though the rental unit was a one-bedroom. There were so many belongings, including large cabinets, wardrobes, and a freezer, that they were piled to the ceiling, and she could not see the floor. The Landlord admitted that she talked to the

Tenant around once per week regarding her belongings, asking when they would be removed and offering to help with organization and disposal. The Landlord explained that the level of clutter made her feel unsafe, as she believed the items were a fire hazard. The Landlord noticed hand towels and other small items on the stove element and requested the Tenant to move them to the counter.

9. The Landlord denied telling the Tenant to take time off work to declutter and that she threatened to evict the Tenant, stating that she simply served an eviction notice on February 24, 2024. The Landlord confirmed that she called the Tenant's previous landlord but did not actually speak with them. The Landlord requested to provide her own photographs of the unit but admitted that she did not serve them to the Tenant. In

accordance with Rule 19.7 of the Board's *Rules of Procedure*, I declined to admit the Landlord's documentary evidence.

10. The photographs of the unit from February 2024 do not show a cluttered unit. The walkways are clear, the furniture is spaced appropriately, and most items are stored neatly on shelves. There is one table which has a pile of items, but this does not rise to the level of "clutter".
11. I find the Landlord's actions in discussing the state of the Tenant's unit on a weekly basis to constitute harassment. Landlords have legal pathways to deal with what they believe to be interference by tenants, which do not include weekly conversations, particularly after the Tenant asked the Landlord to stop. I find that the Landlord engaged in a pattern of vexatious conduct that she ought to have known would be unwelcome. However, I do not find that this substantially interfered with the Tenant, as she was able to use the rental unit during the remainder of the week.

Remedies

12. Given the circumstances, I find a lump sum rent abatement of \$300.00 to be appropriate.
13. The Tenant requested that the tenancy be officially terminated on the termination date in the Landlord's notice, April 30, 2024. This request is granted.
14. The Tenant also requested the difference in rent between the rental unit and her new unit, as well as moving and storage expenses. I am not satisfied that the Landlord's harassment was so severe that the Tenant had to vacate the rental unit. Therefore, this request is dismissed.

It is ordered that:

1. The total amount the Landlord shall pay the Tenant is \$353.00. This amount represents:
 - \$300.00 for a rent abatement.
 - \$53.00 for the cost of filing the application.

2. The Landlord shall pay the Tenant the full amount owing by December 21, 2025.
3. If the Landlord does not pay the Tenant the full amount owing by December 21, 2025, the Landlord will owe interest. This will be simple interest calculated from December 22, 2025, at 4.00% annually on the balance outstanding.
4. The Tenant has the right, at any time, to collect the full amount owing or any balance outstanding under this order.
5. The tenancy between the Landlord and the Tenant is terminated as of April 30, 2024.

December 10, 2025

Date Issued

Kate Sinipostolova

Member, Landlord and Tenant Board

15 Grosvenor Street, Ground Floor Toronto
ON M7A 2G6

If you have any questions about this order, call 416-645-8080 or toll free at 1-888-332-3234.